CITY OF OPA-LOCKA

"The Great City"

REGULAR COMMISSION MEETING MINUTES
June 13, 2012
7:00 P.M.
Opa-Locka Municipal Complex
780 Fisherman Street, 2nd Floor
Opa-Locka, FL 33054

1. CALL TO ORDER:

Mayor Taylor called the meeting to order at 7:00 p.m. on Wednesday, June 13, 2012 on the 2nd Floor of the Opa-Locka Municipal Complex, 780 Fisherman Street, Opa-Locka, Florida.

2. ROLL CALL:

The following members of the Opa-Locka City Commission were present: Vice Mayor Dorothy Johnson, Commissioner Rose Tydus, Commissioner Gail Miller, Commissioner Timothy Holmes, and Mayor Myra L. Taylor. Also in attendance were: City Manager Bryan K. Finnie, City Attorney Joseph S. Geller and Interim City Clerk Joanna Flores.

3. INVOCATION:

The Invocation was delivered by Commissioner Rose Tydus.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following Consent Agenda Items were pulled and would be discussed separately under Agenda Item 15 – New Items: 19-1, 19-2, 19-5, 19-8, 19-9, 19-12, 19-13, 19-14, 19-16 (Vice Mayor Johnson), 19-10, 19-11 (Commissioner Miller), and 19-3, 19-4, 19=6, 19-7 and 19-15 (Commissioner Holmes).

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes

Commissioner Miller	Yes
Mayor Taylor	Yes

Vice Mayor Johnson asked for the status of the 2012 Summer Camp for Sherbondy Park.

Manager Finnie said the city has moved forward with its summer program.

Vice Mayor Johnson inquired about the number of kids enrolled in the city's summer program.

Charles Brown, Parks & Recreation Director for the City of Opa-locka came forward and stated that there are currently 42 kids at Sherbondy Park and 32 kids at Ingram Park.

7. APPROVAL OF MINUTES:

Regular Commission Meeting- 05/09/2012

It was moved by Commissioner Holmes, seconded by Commissioner Miller to approve the minutes of the Regular Commission Meeting of May 9, 2012.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

8. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

9. 17th CONGRESSIONAL DISTRICT OF FLORIDA REPORT:

10. STATE SENATORS REPORT:

11. STATE REPRESENTATIVES REPORT:

12. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for Miami-Dade County Commissioner Barbara Jordan's Office informed the City Commission that he has been in contact with Mr. Owen Carney of the City of Opa-locka Public Works Department in regards the canal bank erosion in the city. A meeting will be scheduled in the near future between Miami-Dade County and the city's Public Works Department in an effort to come up with a solution to rectify the problem.

Commissioner Holmes requested that this matter be addressed because he received a citizen complaint regarding the canal bank erosion causing damage to the homes along the canal.

Vice Mayor Johnson expressed her concern relating to a deck on the Burlington Canal.

She further mentioned that the city's Code Enforcement Department was removing campaign signs, more specifically across the street from the Post Office. She informed the City Manager that if the candidate obtained approval to post their sign at that location then staff needed to replace the signs.

13. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

14. PUBLIC PRESENTATION:

1. **Gina Fernandez**
   Internal Revenue Service
   re: free tax related services and programs

Gina Fernandez of the Internal Revenue Service came forward and informed the commission that her office has created partnership with different organizations to provide tax awareness, tax preparation services, financial education and asset building to the citizens.

14a. CITIZENS' FORUM:

Alex Gonzalez, Waste Management appeared before the City Commission and presented a check to the city for $7,315.54. An internal audit was performed and it was discovered that there were clerical errors over the last several years relating to Franchise Fees.

Eldridge Redmon of 2766 NW 131st Street, Opa-locka, Florida, appeared before the City Commission to voice his concerns regarding the voting process and Planned Parenting. He mentioned that Planned Parenting went to the legislatures and it was voted down. He expressed the importance of getting the citizens registered to vote.

John Riley of 2963 NW 135th Street, Opa-locka, Florida, appeared before the City Commission and voiced his concern relating to a shooting that occurred over the weekend at the NW 22nd Avenue Apartments where the victim was shot 14 times, underwent surgery and is now recovering.

Naomi Ross, 490 Opa-locka Boulevard, appeared before the City Commission on behalf of the Opa-locka CDC to speak about the proposed community garden project for the Magnolia North area.

Derrick Porter, 3081 NW 193rd Street, appeared before the City Commission to show his support towards the proposed community garden project.

Vice Mayor Johnson asked, will the community garden be housed at the VFW?

Ms. Ross replied, no. There is a sight in the Magnolia North that the Opa-locka Community Development has identified, so they are partnering with the veterans group because they have an existing food distribution program.

Rev. Joseph Kelley, 485 Dunad Avenue, Opa-locka, Florida, appeared before the City Commission in support of the legislation for an Interlocal Agreement with Miami-Dade County for Traffic Engineering Function; however, he would hope there's a review as part of the agreement for calibration and timing for consistency.

He further expressed his concerns relating to the budget amendment and the amount of monies that is being utilized for pump station upgrades.

Vice Mayor Johnson said she would the City Manager to look at the feasibility of partnering with Teen Upward Bound for the 2012 Summer Camp at Sherbondy Park because as a business person volunteer staff is not always guaranteed.

Commissioner Miller asked if part time Opa-locka citizens can be hired to work in the Parks & Recreation Department?

Manager Finnie said that could be a possibility.

It was moved by Vice Mayor Johnson, seconded by Commissioner Tydus to amend the agenda to include a resolution directing the City Manager to work with Teen Upward Bound for the 2012 Summer Camp at Sherbondy Park.

There being no discussion, the motion failed by a 3-2 vote.

Commissioner Miller	No
Commissioner Holmes	No
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	No

15. ACTION ITEMS (items from consent agenda pull list):

1. (19-1) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN INTERLOCAL AGREEMENT WITH MIAMI-DADE COUNTY FOR TRAFFIC ENGINEERING FUNCTIONS AS REQUIRED IN THE CITY OF OPA-LOCKA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

Vice Mayor Johnson expressed her concerns relating to comments told to the citizens about money being spent and it was told that a commissioner wanted this in the community. She said she would have liked for the citizens to be involved in the process for input.

After speaking with a representative from Miami-Dade County it was suggested that the city monitor this and in her opinion it would be cost effective to have a staff person monitor all city projects. However, at this time, she is a bit hesitant about supporting anything that is not an enhancement to the city's public safety or education because of the existing budget shortfall.

She further said she would not support this item until the city gets input from the citizens. She requested this item be deferred.

Commissioner Miller said she had prior conversation with Manager Finnie. She asked him if a Town Hall Meeting had taken place to inform the citizens.

Manager Finnie apologized for not being more aggressive with community outreach.

Commissioner Holmes said he lives in the area of Jann and Seaman and he had no knowledge about the roundabouts.

Manager Finnie deferred items 19-1 and 19-2 to allow for citizen input.

2. (19-2) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE AMENDING THE CONTRACT OF JVA ENGINEERING CONTRACTOR, INC., TO PERFORM ADDITIONAL WORK ON NW 143RD STREET TO INSTALL A ROUNDABOUT AT THE INTERSECTION OF NW 143RD STREET, NW 24TH AVENUE AND RUTLAND STREET IN AN AMOUNT NOT TO EXCEED ONE HUNDRED SEVENTY FOUR THOUSAND EIGHT HUNDRED NINETY DOLLARS ($174,890.00), PAYABLE FROM ACCOUNT NO. 44-541805 (CAPITAL PROJECT FUND) AND ACCOUNT NO. 47-541805 (PTP FUND); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above item was deferred by the City Manager.

3. (19-3) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH COMTECH ENGINEERING, INC. FOR THE REHABILITATION OF SANITARY SEWER PUMP STATION 10, IN AN AMOUNT NOT TO EXCEED SIX HUNDRED SEVENTY SIX THOUSAND FIVE HUNDRED FORTY-THREE DOLLARS AND THIRTY CENTS ($676,543.30), PAYABLE FROM ACCOUNT NUMBER 35-535630; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Miller to pass the above resolution.

Commissioner Holmes asked for the location of PS 10 and the amount of money allocated for this pump station.

Manager Finnie said that this pump station is located at Sultan and Perviz Avenue. He said there were no funds allocated for pump station 10 during his tenure.

Commissioner Holmes asked, how long has the city had the funds to repair the pump station?

Faye Douglas, Budget Administrator for the City of Opa-locka came forward and explained that the funds are budgeted in the current years budget and part of the budget amendment. There is $242,500.00 in the adopted budget which came from state legislative dollars.

Manager Finnie added that the city had the state money for two years and the balance is in the enterprise funds.

Commissioner Holmes expressed his frustration with the city having state dollars for two years when citizens have been complaining about that pump station.

He further asked for the timeline as it relates to the completion of the pump station at Sherbondy Park?

Manager Finnie said it should be completed within the next 30 days.

Commissioner Holmes asked if there were any sewer line or water main lines broken at Sherbondy that will require additional dollars for repairs?

Manager Finnie said he had no knowledge of any sewer line breaks.

Commissioner Holmes spoke about the sewer lines being backed up at Sherbondy Park.

Manager Finnie explained that the pump has been there prior to the construction to make sure there is a sewage flow until the construction at that location is completed.

Vice Mayor Johnson voiced her concerns regarding the panel evaluation.

She asked, is this item time sensitive, because she would like staff to look at the amount of money that has been previously spent for this project.

Manager Finnie said it is time sensitive, but he has 30 days, therefore he would like to defer this item until the next Commission Meeting.

Commissioner Holmes asked, why does it cost $700,000.00 to repair pump station 10?

Manager Finnie stated this is the amount provided by the contractor as a part of the RFP process.

The above item was deferred by the City Manager.

4. (19-4) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ADVERTISE AND ISSUE A REQUEST FOR PROPOSALS (RFP) FOR QUALIFIED CONSTRUCTION FIRMS FOR THE IMPROVEMENT OF DRAINAGE SYSTEM AT RUTLAND STREET, PAYABLE FROM THE PTP FUNDS AND CAPITAL PROJECTS FUND, ACCOUNT NUMBERS 47-541807 AND 44-541807; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Miller to pass the above resolution.

Manager Finnie said the above resolution is for a small drainage project located near Rutland Street and NW 24th Avenue.

Vice Mayor Johnson expressed her concerns as to the amount of money being spent and the remaining amount in that specific line item.

She directed the City Manager to provide the City Commission with the total amount of money spent from that line item from October 1, 2011 to present.

There being no further discussion, the motion passed by a 3-2 vote.

Commissioner Miller	Yes
Commissioner Holmes	No
Vice Mayor Johnson	No
Commissioner Tydus	Yes
Mayor Taylor	Yes

5. (19-5) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ISSUE A REQUEST FOR QUALIFICATIONS (RFQ) TO IDENTIFY QUALIFIED AFTER SCHOOL PROGRAMS SUCH AS DANCE, ART, PHYSICAL FITNESS, WEIGHT TRAINING, BASKETBALL, AQUATIC RECREATIONAL PROGRAM AND/OR OTHER SERVICES TO BE DOMICILED IN THE SHERBONDY PARK VILLAGE FACILITY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

Vice Mayor Johnson said she could not support this item. Based on the City Manager's staff, there is great opportunity for professional development. The city needs to have trained qualified personnel to run the Parks & Recreation Department. She would have supported training for staff or partnering with an organization that has funding to compliment what the city doesn't have.

Manager Finnie explained that this resolution is asking for an opportunity to see if there's a demand for trained service providers to come in and rent space in the city's building. The cost of hiring additional staff may be prohibited so he was looking at other options to present to the City Commission.

Commissioner Holmes said he would like to look at hiring Opa-locka residents to work in the Parks & Recreation Department.

Vice Mayor Johnson said some of the local universities have interns that can provide their expertise.

Commissioner Tydus supported the above resolution because it's only providing the administration the ability to receive proposals and this will help make a better determination in moving forward. The city is trying to provide quality recreation in these specialized areas of which an intern cannot provide, because they too have to be under supervision of experienced people.

Commissioner Miller said there are a lot of student interns that will be happy to provide these volunteer services to the city.

Mayor Taylor did not support this item because it looks like a back door way of getting a business in the Sherbondy Park Village Facility. Previously she asked Mr. Finnie if he had a conflict with Town Center in this building and his response was "no". The city must stop paying the rent and lease at Town Center, the rent paid is the city's current budget deficit. Miami-Dade County informed her that the city put $4,000,000.00 into that building and they did not have any problems with the moving into it because the county did not put a majority of the money into that building.

She further mentioned that she asked the commission on several occasions to take a look at the building for the possibility of relocating the city offices.

Commissioner Holmes said he previously requested that the City Manager provide the Commission with a written report as to the cost of modular and he has not received that information.

Vice Mayor Johnson said she does not have a problem with relocating, however she did receive a report regarding the modular and everyone with the exception of Commissioner Miller received

that same report from the previous City Manager. She said she along with former Mayor Joseph Kelley were the only two individuals who spoke up for that building.

She asked that the City Manager provide the Commission with the correspondence that states the city can relocate to that building because her documents says that building is only for public use.

Manager Finnie deferred item 19-5.

6. (19-6) A RESOLUTION OF THE CITY COMMISSION IF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PURCHASE AND INSTALL A MODULAR TRAILER BY MODSPACE FOR THE PUBLIC WORKS AND UTILITES DEPARTMENT AS A STAFF LUNCHROOM, IN AN AMOUNT NOT TO EXCEED SIC THOUSAND SIX HUNDRED SIXTY-FIVE DOLLARS ($6,665.00) PAYABLE FROM ACCOUNT NO. 35-535520 AND 39-541520; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

7. (19-7) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE SETTLEMENT FOR RAYMOND WALLS IN THE MATTER OF EDWARD BLACKMAN AND RAYMOND WALLS VS. THE CITY OF OPA-LOCKA, IN THE TOTAL AMOUNT OF $75,000.00, PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECITVE DATE. *Sponsored by the City Manager*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes

Mayor Taylor Yes

8. (19-8) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO EXTEND THE LAWRENCE WRIGHT & PARTNERS, LLC CONTRACT FOR EIGHT MONTHS, RETROACTIVE FROM DECEMBER 2011 AND ENDING JULY 2012, AS PROJECT MANAGEMENT FOR COMPLETION OF THE SHERBONDY PARK VILLAGE INITIATIVE, PAYABLE FROM ACCOUNT NUMBER 44-541802; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

Manager Finnie said there are a number of things that needs to be done, but most importantly, the city recently received $200,000.00 change order that has to do with time and delay. Mr. Wright was the construction manager over the contractor during the construction process and he has been in negotiations which can help the city negotiate out of having to pay for that change order.

Vice Mayor Johnson would like the record to reflect that her and Mr. Wright worship at the same church and she have never received any funds from him. She has concerns when you have a project manager that does not complete the project then is being told that staff has the certifications. She stated that Mr. Wright was the only person that sat with her and the previous City Manager when it was time to meet with Miami-Dade County to get everything on track for the building.

She further said Lawrence Wright & Partners, LLC was not involved in this project from the beginning and she is happy Mr. Abia was available to act as the project manager.

Commissioner Tydus said the in the event the resolution is passed it will end July 2012, she would like Lawrence Wright & Partners, LLC to complete the project at no additional cost.

Commissioner Miller asked why the contract was not extended if the project was not complete.

Manager Finnie said he was not familiar with Mr. Wright's contract and they were focusing on getting the project complete; however, by the time he reviewed the contract it had lapsed while Mr. Wright was still working.

Mayor Taylor said the first time this resolution came before the City Commission the payout amount was Fifty Thousand Dollars, now the amount is Sixty Five Thousand Dollars and she recall the Finance Director stating the city does not owe Mr. Wright any money.

Manager Finnie said staff response was based on the contract, the contract had ended, and therefore we didn't have an obligation to pay moving forward.

Mayor Taylor asked, when did the contract end?

Manager Finnie said November 2011.

He further said in December and January Mr. Wright continued to work with him several times a week as they began to get the final details of the project. The big issue is the time delay change order which occurred in the beginning of the project.

Mayor Taylor said the city has two engineers on staff that can work on the project. She asked who was the project manager before Mr. Wright.

Mr. Finnie said the city did not have a construction manager.

Esin Daniel Abia, Former Director of the Building & License Department said he was the project manager for this project until he was removed from the city. At no time at all was Lawrence Wright left alone to manage this project. Arshad Vigar knows more about this project because he is the first inspector that inspected from the demolition to the foundation. He is a structural engineer, civil engineer, and plan reviewer.

He further said no one can claim a time delay because they took all the necessary steps to support the CBHC. They provided them with a foundation permit so they didn't have to wait for the permit process along with other short cuts.

Mayor Taylor asked, what give CBHC the impression that the city owes them $213,000.00?

Mr. Abia said all of that is a result when people are removed.

He further said Mr. Wright cannot help, however Mr. Arshad can because he was there from the beginning. Lawrence Wright was hired because Miami-Dade County said they needed an unbiased person to serve as project manager.

Vice Mayor Johnson said she is surprised to hear Mr. Abia say Mr. Arshad is the only person that can help because he has never mentioned that.

She asked Mr. Abia if he saying Mr. Arshad can take the city to the closure of the Sherbondy Village project?

Mr. Abia replied, yes. He is surprised that there is a discussion regarding renting the building when they have not applied for a Certificate of Occupancy.

Vice Mayor Johnson said when she went to the meeting with Miami-Dade County they said it was not many people in the city that they trust with the money.

She asked, has Mr. Wright been paid in full?

Ezekiel Orji, Finance Director came forward and stated that the city has finished paying Mr. Wright according to the contract.

Vice Mayor Johnson asked how much has the city paid to Mr. Wright?

Dr. Orji replied, $150,000.00.

Lawrence Wright came forward and stated that he was hired by the city on November 2, 2011 with a one year contract or until the completion of the project. The former City Manager told him if the building was not complete within a year then the contract will roll over so he kept working after the year. He was just trying to complete the project and provide the proper services.

He further mentioned that he donated special services to the city, because he just wants to see the project complete.

Manager Finnie said there were a number of weekend and late night meetings he had with Mr. Wright and his staff to put him up to speed with the project.

Mayor Taylor asked, what completes a project?

Mr. Wright responded by saying a Certificate of Occupancy.

He further said the Sherbondy Village facility will also be utilized as a hurricane relief shelter so they had to make sure the building is equipped with the proper voltage.

Mayor Taylor asked, wasn't that Mr. Wright's job to make sure the building had the proper voltage?

Mr. Wright said that was not included in CBHC contract so they gave the city another change order for $142,000.00 and his company was able to get that amount down to $56,000.00.

Mayor Taylor was of the opinion that engineers currently employed by the city could close this project out.

Mr. Wright said they can't do what he does because they don't have any knowledge regarding time delay change orders.

Mayor Taylor suggested that Mr. Wright assist with the time delay change orders and for the city engineers to close the project.

Manager Finnie explained that the city will go through a CDBG close out process and Mr. Wright has signed off on many of those documents that are critical for the city.

Attorney Geller asked Mr. Wright if the commission shall pass the item, would he be willing to continue working on the project through the closing as oppose to the month of July without additional compensation beyond what is sought at this point.

Mr. Wright replied, yes. He will do everything that needs to be done to get the community into the building.

Commissioner Holmes asked when was Mr. Wright's last time doing any work in the building.

Mr. Wright said most of his work now consists of negotiating with the contractors and he was negotiating with them this morning regarding the change orders that's being discussed.

Commissioner Holmes asked Mr. Wright is he recall Miami-Dade County taking funds from the city and he was suppose to work on trying to get the money back?

Mr. Wright said yes and Mr. Finnie was hired at the time, the Commission said Mr. Finnie will take care of that component because he was in that position.

Vice Mayor Johnson asked Mr. Vigar if he can negotiate with the contractor to have the change order reduced?

Mr. Vigar explained that he can do engineering work, but he is not a project manager and he can not negotiate a time delay change order.

He further said he is familiar with the project, however not the litigation portion.

Vice Mayor Johnson said when this project went out for bid the document mentioned a miscellaneous project and she wants to know what does the "miscellaneous" mean.

Mr. Wright said the RFP asked for Sherbondy Park & Village and other miscellaneous projects. The term of that agreement required a three year contract with two one year extensions. The miscellaneous means any project the city needs assistance with.

Attorney Geller clarified that the RFP went out before his firm came back to the city, but language about miscellaneous projects does not appear in paragraph two. The document says management services as to Sherbondy Village Project, and it was objected that this will be for any other miscellaneous services. This was not what they were engaging Mr. Wright to do and they did not agree to the language. At that time, several members of the commission were not happy about this, but they did make some changes.

Vice Mayor Johnson asked Mr. Geller what did he mean by some commissioners were not happy and what did he do to convince them differently.

Attorney Geller said he informed them that it was improper to sign under other circumstances and it should not be open ended and that's the document they ultimately agreed on.

Vice Mayor Johnson asked, does the city owe Mr. Wright any money?

Attorney Geller replied yes, but the city would not have owed him any other money unless he was engaged; however they limited on this project on the theory that any other projects that might go out should go out separately.

Vice Mayor Johnson said Phase 1 Scope of Work indicates change order review, monitor all schedules and activities and she assume it was agreed upon with the previous City Manager. Does this cover the change order that was previously discussed?

Manager Finnie said he believes it refers to change orders from a generic stand point.

Vice Mayor Johnson asked Mr. Finnie if the change order he's referring to out of the scope of Mr. Wright's service period.

Manager Finnie replied, yes.

He further said he did not want to pay Mr. Wright and he tried to find ways to move forward without his services, but he realized he could not move forward.

Vice Mayor Johnson said they have promised the citizens that the building will be opened in March, then July, then November. The city needs closure and move forward to have the building open.

She further directed the City Attorney to bring back a resolution for the July Commission for a in- house City Attorney.

There being no further discussion, the motion passed by a 3-2 vote.

Commissioner Miller	Yes
Commissioner Holmes	No
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	No

9. (19-9) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO GRANT CONDITIONAL USE FOR ALUMINUM SMELTING OR REFINING OF METALS USE BY PROPERTY OWNER, ALL JAPANESE ENGINES HOLDINGS, TO OPERATE AN ALUMINUM SMELTING OVEN, SUBJECT TO CONDITIONS STATED IN ORDINANCE NO. 11-06; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

Vice Mayor Johnson expressed her concerns as to the comments that were made by the company in the Planning Council minutes. In her professional opinion it appears that some of the things that were stated they wanted the Planning Council to go back to institutional knowledge and for staff to speak to former commissioners. She asked, what has been done to correct the situation?

Manager Finnie said there were a number of concerns expressed by the Planning Council and once it goes to the Planning Council they are mandated to bring it forth with their recommendations. In speaking to the City Attorney he mentioned that he informed the Planning Council that they can not issue a ruling on the land use change, but they can look at the smelting to make a decision. They made a positive decision on the smelting and that's what has been brought before the commission. They will still need to deal with the land use issue that's affecting this company. They are currently zoned in the I-2 zone and they are eligible to move forward and use the smelter at that location.

Vice Mayor Johnson said she served on the Planning Council and she is concerned when it relates to environment and land use.

Manager Finnie said staff makes reference to the requirements from EPA, Clean Air Act and Florida Pollution Laws. Everything they ask for the Planning Council to approve is contingent upon the applicant meeting the standards. The applicant still has to get final approval from the State of Florida.

Vice Mayor Johnson said staff needs to do their homework to make sure everything is incorporated in the documents.

Manager Finnie said the application was submitted and it has to be processed by law. In order for the applicant to get a permit to use the equipment they will have to come back with all the State approvals.

Commissioner Holmes said after reviewing the Planning Council minutes he noticed they voted 4-0 to approve the item. He recalls the Community Development Department requesting additional requirements of the applicant and the applicant agreed to do whatever the city requested of them.

Manager Finnie said there are two aspects of this program. The first being the smelter and second being the land use issue. The smelter that is in question has been approved by DERM. The Planning Council approved the use of that equipment; they have not approved the land use issue, which is the most significant issue. After speaking with the City Attorney he was advised that the Land Use issue has to be dealt with separately.

He further mentioned that the applicant has verbally agreed to bring down the storage of metal on the site. They are in discussion as to how soon that process can occur. He is also asking for a land use change and staff is not prepared to recommend it at this time until they have done further research.

Commissioner Holmes asked, did the applicant provide staff a list of things they requested from them that was agreed upon?

Manager Finnie said they have a list of things that were discussed and they are comfortable with it, but they have to let the City Attorney review it.

Commissioner Holmes said that should have happened before the item came before the commission.

He further said the applicant has been before the planning council on several occasions and paid the required application fees to get the item approved.

There being no further discussion, the motion failed by a 3-2 vote.

Vice Mayor Johnson	No
Commissioner Holmes	Yes
Commissioner Tydus	No
Commissioner Miller	No
Mayor Taylor	Yes

Vice Mayor Johnson and Mayor Taylor suggested that staff waive the fees should the applicant have to come back.

10. (19-10) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY ATTORNEY'S OFFICE TO REPRESENT THE CITY OF OPA-LOCKA IN THE LITIGATION OF DANRON MANAGEMENT, INC., VS CITY OF OPA-LOCKA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Attorney*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Miller, seconded by Vice Mayor Johnson to pass the above resolution.

Attorney Geller informed the City Commission that Danron Management sued the city and sought an emergency injunction to allow them to conduct a paint and body shop in the I2 zoning district when the city code only permits it in the I-2A or I-3 zone and he's trying to defend the law suit against the city.

Commissioner Miller asked, where was the Community Development staff when this item came up?

Attorney Geller said Community Development rejected it and the company sued the city.

Commissioner Miller wants to know how the company can sue the city when the company is not in the correct zone.

Attorney Geller said the judge agreed with the city and rejected the company's injunction.

Commissioner Miller asked, how much the city has to pay Mr. Geller for this case?

Attorney Geller replied, $195.00 per hour.

Commissioner Holmes asked, what zone was Danron Management located in?

Howard Brown, Community Development Director said they were in I-2 zone, which is heavy industrial zoning district.

Commissioner Holmes asked, what was I-2A zone created for?

Mr. Brown said it was created for strap metal, junkyard, and auto salvage businesses.

Commissioner Holmes asked, how long has the paint and body shop been located in the I-2 zone?

Mr. Brown said it has been there for several years.

Commissioner Holmes said the city needs to correct the problem by giving the company an opportunity to relocate their business so it will not be a hardship on them.

Vice Mayor Johnson said the commission has always said there is a lot of spot zoning in the city and it is wrong. The city needs to offer to put the company in the correct zone.

Mayor Taylor asked, are we in litigation because we did allow the company to operate out of zone?

Attorney Geller replied, yes.

Mayor Taylor asked, can the item be negotiated?

Attorney Geller said the commission can change the zoning in the area. As it stands, the business is located in I-2 zone and they are allowed in I-2A zone so the landlord filed an injunction against the city. He has to go court unless the Judge will enter an order against the city and award attorney fees, costs, and order the city's zoning code to be violated. The city does not have an option because they sued the city.

Commissioner Holmes asked, when did I-2A go into affect?

Mr. Brown said July 23, 1986.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	No
Mayor Taylor	Yes

Commissioner Holmes directed the City Attorney to provide him with a list of the law suits the city has paid him to go to court for $195.00 within the next five days.

Vice Mayor Johnson said she sponsored legislation that all items going for litigation must come to the commission.

11. (19-11) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY ATTORNEY'S OFFICE TO REPRESENT THE CITY OF OPA-LOCKA IN THE LITIGATION OF KEITH CLIETT VS. CITY OF OPA-LOCKA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Attorney*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Miller, seconded by Vice Mayor Johnson to pass the above resolution.

Attorney Geller informed the commission that this is a new law suit and nothing has been done yet. Mr. Cliett was formerly employed by the city and he is suing the city claiming he worked in excess of 40 hours per week and was not paid overtime. He is also seeking to bring this case in a representative capacity on behalf of other people in the nature of a class action law suit. The case was forwarded to the Florida League of Cities to see if they would assume the defense, however they declined to defend this case because it's not a civil rights case; it is a fair labor standard act.

Commissioner Holmes asked, how much overtime is Mr. Cliett claiming the city did not pay him?

Attorney Geller said he is not required to make a specific dollar amount at this time, but it is his understanding that the claim is not with merit.

Commissioner Miller asked, what department did the gentleman work for?

Owen Carney said he was employed through the President Obama initiative and was assigned to the city's Public Works Department for six months.

Vice Mayor Johnson said the city did agree on it and it was not brought to the commission for approval.

Attorney Geller assured the commission that before anything else happens, he will be in contact with the attorney representing Mr. Cliett to get the matter resolved.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Miller	Yes
Commissioner Tydus	Yes
Commissioner Holmes	No
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

12. (19-12) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO RESUME HOSTING AN ARABIAN NIGHTS FESTIVAL IN THE CITY OF OPA-LOCKA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Taylor*

The above item was deferred by Mayor Taylor.

13. (19-13) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AMEND RESOLUTION 11-8232 TO REFLECT A NAME CHANGE FROM THE CITY OF OPA-LOCKA EDUCATION & SCHOLARSHIPS FOUNDATION, INC. TO THE CITY OF OPA-LOKCA EDUCATIONAL FOUNDATION, INC., PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Vice Mayor Johnson*

The above item was deferred by Vice Mayor Johnson.

14. (19-14) A RESOLUTION OF THE CITY COMMISSIONOF THE CITY OF OPA-LOCKA, FLORIDA, TO APPOINT OFFICERS TO THE CITY OF OPA-LOCKA EDUCATIONAL FOUNDATION, INC., PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Vice Mayor Johnson*

The above item was deferred by Vice Mayor Johnson.

15. (19-15) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO INVESTIGATE METHODS AND MEANS OF CANCELLING THE CITY'S CONTRACT WITH AMERICAN TRAFFIC SOLUTIONS (ATS) FOR RED LIGHT CAMERAS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Attorney*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Miller to pass the above resolution.

Commissioner Holmes recalled when the Red Light Cameras were first introduced everyone was excited about the revenue it could bring into the city. Since then, there have been so many complaints and Opa-locka is one of the poorest cities in the county.

Vice Mayor Johnson said she will support the resolution, however, there are too many people running red lights and she's not totally convinced that the city does not need them. She disagreed with the comment about Opa-locka being one of the poorest cities because it seems like this city has a lot of money for law suits.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

Mayor Taylor recommended that the Commissioner allow Vice Mayor Johnson to coordinate a timeline and schedule interviews for the City Manager position.

It was moved by Commissioner Holmes, (Mayor Taylor passed the gavel to Vice Mayor Johnson to seconded the motion) seconded by Mayor Taylor to amend the agenda to include a motion designating Vice Mayor Johnson to coordinate a timeline and schedule interviews for the City Manager position.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes
Vice Mayor Johnson	Yes

It was moved by Mayor Taylor (Mayor Taylor passed the gavel to Vice Mayor Johnson to seconded the motion) seconded by Commissioner Holmes for the City Commission to designate Vice Mayor Johnson to coordinate a timeline to schedule interviews for the City Manager position and be available to choose an application before the next Regular Commission Meeting or a Special Meeting be called for that purpose.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes
Vice Mayor Johnson	Yes

Vice Mayor Johnson returned the gavel to Mayor Taylor.

16. (19-16) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO REMOVE BRYAN K. FINNIE AS HE CITY MANAGER, DUE TO LACK OF CONFIDENCE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Holmes*

The above item was deferred by Commissioner Holmes.

16. NEW ITEMS:

17. PLANNING & ZONING:

A. HEARINGS:

B. **APPEALS:**

18. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO IMPOSE A MORATORIUM ON NEW JUNKYARDS, SCRAP METAL FACILITIES AND AUTO SALVAGE BUSINESSES CITYWIDE FOR TWELVE (12) MONTHS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Miller, seconded by Vice Mayor Johnson to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Miller	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Out of Room
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 11-15, THE GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2011 AND ENDING SEPTEMEBER 30, 2012 ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A", OPTION _____ (A, B, OR C); CONTAINING A REPEALER PROVISION AND SEVERABILITY CLAUSE; FURTHER PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to defer the above ordinance pending a workshop.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 11-16, THE PROPRIETARY AND SPECIAL REVENUE FUNDS BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2011 AND ENDING SEPTEMBER 30, 2012; ADJUSTING REVENUES AND EXPENDITURS AS REFLECTED IN EXHIBIT "A", REFLECTING CHANGES IN REVENUE SOURCES AS FOLLOWS: FEMA FUND (FUND 169), FIVE THOUSAND FOUR HUNDRED AND NINETY FIVE DOLLARS ($5,495); WATER AND SEWER FUND (FUND 440), EIGHT HUNDRED AND FIFTY NINE THOUSAND NINE HUNDRED AND EIGHTY ONE DOLLARS ($859,981); CONTAINING A REPEALER PROVISION AND SEVERABILITY CLAUSE; FURTHER PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above ordinance on first reading.

Vice Mayor asked for the line items and why the line items are not listed in the ordinance.

Attorney Geller referred to Exhibit "A" for the listing.

Faye Douglas, Budget Administrator came forward and stated that Exhibit A is an attachment in the ordinance and that exhibit has a schedule that shows what line items are affected.

Vice Mayor Johnson said she noticed in several of the exhibits several departments had a greater increase, i.e. the City Clerk's Office and Public Works Department.

Ms. Douglas said that was part of the general fund ordinance and they are discussing the proprietary fund.

Vice Mayor Johnson said they both are related.

Ms. Douglas said a memorandum is attached as part of the general fund ordinance and page 3 of that memorandum explained the reasons for the departmental increase.

Vice Mayor Johnson asked for an explanation as to the decrease in the Community Development Department.

Ms. Douglas said the Community Development Department is adding $200,000.00 for this year's portion of the Community Challenge Grant. In addition, the city is committed to providing an in-kind service that's coming out of the city's funds and it will be paid over a two year period, which provides a savings to the city.

Vice Mayor Johnson asked for clarification as it relates to the increase in the line item for Special Events?

Ms. Douglas and Mr. Finnie explained that increase in the Special Events line item was due to contributions received for several events.

Vice Mayor Johnson reminded everyone of the fact that a resolution was passed by the City Commission that any monies received for Commission events should be reported back to the Commission.

She mentioned that monies were received for the Police Department last year and as of today no one ever came in front of commission for approval.

There being no further discussion, the motion failed by a 3-2 vote.

Vice Mayor Johnson	No
Commissioner Tydus	Yes
Commissioner Miller	No
Commissioner Holmes	No
Mayor Taylor	Yes

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to reconsider the above ordinance.

There being no discussion, the motion to reconsider passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

It was moved by Commissioner Holmes, seconded by Commissioner Miller to defer the above ordinance pending a workshop.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Miller	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

4. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOFKCA, FLORIDA, TO REPEAL ORDINANCE NO. 06-14, ORDINANCE NO. 07-14, AND ORDINANCE NO. 11-03 FEES FOR LANDLORD PERMIT PROGRAM; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR CODIFICATION AND SEVERABILITYL PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Holmes*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above ordinance on first reading.

Commissioner Miller asked, how much money has the city received from the Landlord Permit Program?

Manager Finnie advised the Commission that the city received the following as a result of the Landlord Permit Program: $5,000.00 in FY 2009, $465.00 in FY 2010, $5,550.00 in FY 2011 and $56,965.00 in FY 2012.

Commissioner Miller asked why does the sponsor want to repeal the ordinance when it is bringing in revenue to the city?

Attorney Geller indicated that the sponsor informed him that the terms of the new ordinance which raised the amount substantially was hurting some business owners and felt the rates were too high.

Mayor Taylor said a payment scale should be implemented.

Commissioner Holmes said there are three ordinances pertaining to landlord permits and it is confusing to a lot of people. He would like to rescind all three of the ordinances and come up with a new ordinance.

Commissioner Tydus said she thinks this item requires a workshop to come up with suggestions.

The above ordinance was deferred pending a workshop.

5. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOFKCA, FLORIDA, AMENDING ORDINANCE 86-8, THE LAND DEVELOPMENT CODE, TO

INCLUDE TOWING SERVICE AND STORAGE AS A PERMITTED USE IN THE I-1 INDUSTRIAL ZONING DISTRICT; AND TO AMEND LINE 19 OF SECTION 6.10 B; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR CODIFICATION AND SEVERABLITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above ordinance was read by title by Attorney Geller.

The above ordinance died for a lack of a motion.

6. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO CLOSE, A VACATE OR ABANDO THE ALLEY NEAR ALADDIN AND FISHERMAN STREETS, AT 551 FISHERMAN STREET, AT THE REQUEST OF RUDG-TOWN CENTER, LLC; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR CODIFICATION AND SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by the City Manager*

The above ordinance was read by title by Attorney Geller.

Commissioner Holmes said the alley is already closed and they are trying to get it approved now.

It was moved by Commissioner Tydus, the motion died for lack of a second.

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE LEASE AGREEMENT WITH THE SCHOOL BOARD OF MIAMI-DADE COUNTY, FLORIDA, TO LEASE A PARCEL OF LAND TO NATHAN B. YOUNG ELEMENTARY SCHOOL FOR PUBLIC EDUCATIONAL PURPOSES, PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR CODIFICATION AND SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on July 14, 2010) *Sponsored by Vice Mayor Johnson*

The above ordinance was read by title by Attorney Geller.

Mayor Taylor opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes

Commissioner Holmes	Yes
Mayor Taylor	Yes

C. RESOLUTION/PUBLIC HEARING:

19. ADMINISTRATION:

CONSENT AGENDA:

A. CITY MANAGER'S REPORT:

B. ACCOUNTS PAYABLE:

Dr. Ezekiel Orji, Finance Director stated that they have not made any adjustments on the amendment and the city currently has $565,000.00 in the reserve.

Vice Mayor Johnson said she noticed that one of staff recommendations was to take money from the reserve.

Manager Finnie said that is an option.

Dr. Orji said the city is required to keep a minimum of $200,000.00 in the reserve so the city can elect to take anything over that amount.

Vice Mayor Johnson said in 2002 the city did not have any money in the reserve.

Commissioner Holmes asked, who does the inspections for the pump station at Sherbondy Park?

Manager Finnie said the inspections are done by the Public Works Staff.

Commissioner Holmes directed the City Manager to provide him with a list of how many times the pump stations have been inspected along with the inspector's name. He would like to have that list in his office by noon tomorrow (06/14/2012).

20. OFFICIAL BOARD REPORTS:

21. CITY ATTORNEY'S REPORT:

The City Attorney provided his report in writing.

Vice Mayor Johnson directed the City Attorney to bring back a resolution for an in house City Attorney.

In addition, she noticed that the City of Opa-locka Educational Foundation was not incorporated through SunBiz.

22. CITY CLERK'S REPORT:

The City Clerk provided her report in writing.

Vice Mayor Johnson asked Interim Clerk Flores when will the voter education start and if she needs any assistance. She is concerned that the signatures have to match in order to vote.

Interim Clerk Flores informed the Commission that she has been in contact with Miami-Dade County Community Outreach Department trying to schedule a voter Town Hall Meeting/Voter Registration Drive. She has provided them with several dates and is currently awaiting a response.

She further mentioned that she has attended training for new Municipal Clerks on May 23rd and she received a lot of viable information.

Vice Mayor Johnson said she may want to start getting information out to the citizens because the changes will have a great impact on the citizens.

Interim Clerk Flores said she is currently in the process of updating the city's website to include election information.

Commissioner Miller said the citizens need to check their voter registration cards to make sure they vote at the same precincts.

23. MAYOR/COMMISSION REPORT:

Vice Mayor Johnson said Miami-Dade County gave 300 Head start employees the pink slip so she met with Senator Wilson, Commissioner Jordan, Commissioner Spence-Jones, and the Federal Government and it was agreed upon to have those employees considered for employment with the school board. She also served as a workshop facilitator for Teen Court. On June 14th she will attend a meeting with War on Poverty for a presentation with Blue Cross Blue Shield.

Commissioner Tydus briefly addressed a comment made during the citizen's forum regarding her party affiliation and Planned Parenthood.

Commissioner Holmes shared the same concern as Commissioner Tydus as it relates to voting.

24. OFFICIAL BOARD APPOINTMENTS:

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to re-appoint Luvenia Spears to the Housing Authority Board.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes Yes

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

25. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Commissioner Holmes, seconded by Commissioner Tydus to adjourn the meeting at 11:00 p.m.

MAYOR

ATTEST:

INTERIM CITY CLERK